

NAPCS Unionization Research — State — Charter Sector Overview

Utah — NLRB R28 Jurisdiction — June 6, 2026 [RESEARCH DEFERRED]

NAPCS Unionization Research • June 6, 2026 • Template v8.0 • TIER 2D — RESEARCH DEFERRED

Section 1: State Overview

State	Utah
Labor Board	NLRB R28 — National Labor Relations Board, Region 28 (Phoenix)
Governing Law	Utah Code Ann. §53G-5-3 et seq. (Charter School Act). Charter schools are independent employers. NLRB R28 private employer framework applies.
Federal NLRB Jurisdiction	YES — All UT charter schools are independently operated nonprofits — NLRB R28 jurisdiction.
Right-to-Work	Right-to-Work State — Utah Code Ann. §34-34-1 through §34-34-17
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — RTW state; no card-check statute.
Research Status	DEFERRED — Executive Sponsor direction, June 7, 2026 (PDR-018). Sector assumed unorganized. No school-level research conducted.

Section 2: Charter Sector Landscape

Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized. Charter universe and enrollment figures are sourced from Charter School Registry v133 and NCES ELSI 2024–25. No school-level research has been conducted.

Category	Schools	% of Total	Notes
No Organizing Activity Documented	141	100%	Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized.
Total Charter Schools in Utah	141	100%	Source: Charter School Registry v133 (NCES ELSI 2024–25).

Charter Sector Enrollment

Total Charter Enrollment	81,879 students — 12.0% of state K–12 enrollment (684,604 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	N/A — research deferred; sector assumed unorganized
Students in Organized Charter Schools	N/A — research deferred; sector assumed unorganized
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State	National	Organized	Total Enrollment
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		Campuses	Campuses †	in State	
American Preparatory Academy	Network‡	6	—	—	5,174
Ascent Academies of Utah	Network‡	5	—	—	2,854
Summit Academy	Network‡	4	—	—	2,567
Freedom Preparatory Academy	Network‡	3	—	—	2,165
Wallace Stegner Academy	Network‡	3	—	—	2,162
Beehive Science & Technology Academy	Network‡	2	—	—	859
Entheos Academy	Network‡	2	—	—	1,054
Hawthorn Academy	Network‡	2	—	—	1,364
John Hancock Charter School	Network‡	2	—	—	1,043
Leadership Learning Academy	Network‡	2	—	—	907
Monticello Academy	Network‡	2	—	—	1,131
Northern Utah Academy for Math Engineering & Science	Network‡	2	—	—	1,126
Spectrum Academy	Network‡	2	—	—	1,525
Success Academy Utah	Network‡	2	—	—	534
Syracuse Arts Academy	Network‡	2	—	—	1,718
Thomas Edison Charter Schools	Network‡	2	—	—	1,189
Utah Military Academy	Network‡	2	—	—	952
Canyon Grove Academy	Network‡	1	—	—	1,052
TOTAL — All CMO/EMO Schools in Utah		46		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

18 network (type unclassified). Approximately 95 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of June 6, 2026.

1: Legal & Jurisdictional Framework

Utah Code Ann. §53G-5-3 et seq. (Charter School Act). Charter schools are independent employers. NLRB R28 private employer framework applies. Utah is a right-to-work state (Utah Code Ann. §34-34-1 through §34-34-17). Charter schools in Utah are subject to NLRB jurisdiction as private employers (NLRB R28). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter Sector Structure

Utah operates 141 open-enrollment charter schools, enrolling approximately 81,879 students. 18 charter management organizations and education management organizations operate in Utah. The largest networks by campus count are American Preparatory Academy (6 campuses in state), Ascent Academies of Utah (5 campuses in state), Summit Academy (4 campuses in state). Approximately 95 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above. No school-level union research has been conducted. Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026).

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

No press coverage of charter school employee organizing has been identified in Utah. Sector coverage focuses on enrollment growth, authorizer accountability, and virtual charter school operations.

Legislative Context

No charter-sector collective bargaining legislation has been introduced in the Utah Legislature. Utah charter law does not address employee collective bargaining. Utah's right-to-work law (Utah Code Ann. §34-34-1 et seq.) has been in effect since 1955.

Section 6: Contract & CBA Access Registry

No collective bargaining agreements documented for this state. Research deferred — sector assumed unorganized (PDR-018, June 7, 2026).